

Franciscus Dylan Rosario,
7624 Melody
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E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**[PROPOSED] ORDER GRANTING
LEAVE TO FILE SECOND AMENDED
COMPLAINT**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

The Motion for Leave to File the Second Amended Complaint by Plaintiff Franciscus Dylan Rosario came on regularly for hearing before this Court on May 12, 2026 at 9:00 a.m. in Department 301, the Honorable Garrett L. Wong presiding. Plaintiff Franciscus Dylan Rosario appeared

1 in pro per. Defendants appeared through counsel, [Counsel Names].

2 Having considered the moving papers, the concurrently filed Declaration, the Request for Judicial
3 Notice, all opposing and reply papers, and the arguments presented at the hearing, and good cause
4 appearing therefor, the Court finds that Plaintiff has established good cause under Code of Civil
5 Procedure sections 473(a)(1) and 576, and California Rules of Court, rule 3.1324, to amend the
6 pleadings.

7 **IT IS HEREBY ORDERED:**

- 8 1. Plaintiff's Motion for Leave to File the Second Amended Complaint is **GRANTED**.
9 2. The Second Amended Complaint (seven causes of action, including constructive fraud under
10 Civ. Code § 1573 and the refined Fourth Cause), attached as Exhibit 1 to the Declaration of
11 Franciscus Dylan Rosario filed in support of the motion, is deemed filed and served as of the
12 date of this Order.
13 3. Pursuant to Code of Civil Procedure section 471.5(a), Defendants shall file a responsive
14 pleading to the Second Amended Complaint within thirty (30) days of the date of this Or-
15 der.
16 4. This Order preserves all procedural rights of Defendants to challenge the Second Amended
17 Complaint on its own terms via demurrer, motion to strike, or otherwise.

18 _____
19 **IT IS SO ORDERED.**

20 Dated: _____
21 _____

22 HON. GARRETT L. WONG

23 Judge of the Superior Court